

THE PORT AUTHORITY OF NY & NJ

Law Department

*4 World Trade Center
150 Greenwich Street
New York, NY 10007*

September 7, 2017

Via FedEx Express

Secretary, Federal Maritime Commission
800 N. Capitol Street, NW
Washington DC 20573

Re: Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority
Docket No.: 17-07
Our Matter No.: 201711889

Dear Sir/Madam:

Enclosed is an original and 5 copies of the proposed joint status report, which is due today. Please note that the enclosed proposed joint status report is not being filed jointly because I was unable to get in touch with my adversary despite my repeated attempts to do so by both telephone and fax. I am submitting this in order to remain in compliance with Judge Wirth's Initial Order dated July 26, 2017. If you have any questions, please do not hesitate to contact me.

Very truly yours,



Juan M. Barragan

Attorney

Law Department

Tel. No.: (212) 435-3529

Fax No.: (212) 435-3834

Enclosures

cc: Donald F. Burke, Esq. (via FedEx Express w/ encl.)
Erin M. Wirth, Administrative Law Judge (via email: judges@fmc.gov w/ encl.)

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.,

Complainant,

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY,

Respondent.

Pursuant to Your Honor's July 26, 2017 Initial Order, all parties jointly and respectfully submit this joint status report:

Proposed Discovery Plan

The parties jointly propose the following discovery schedule, which concludes discovery by Tuesday, January 16, 2018, and within 150 days of service of the answer:

- **Close of discovery:** January 16, 2018
- **Initial disclosures:** Complainant, Port Elizabeth Terminal & Warehouse ("PETW"), shall serve its initial disclosures by September 15, 2017. The initial disclosures of Respondent, The Port Authority of New York and New Jersey (the "Port Authority"), have already been served.
- **Initial discovery demands:** All initial written discovery demands shall be served by September 15, 2017.
- **Responses to initial discovery demands:** Responses to all written initial discovery demands by October 27, 2017.

- **Additional discovery demands:** Any additional written discovery demands shall be served by December 22, 2017.
- **Responses to additional discovery demands:** Responses to any additional discovery demands within 30 days of service of the demand.
- **Affirmative expert reports:** The deadline for affirmative expert reports, if any, shall be November 24, 2017.
- **Responding expert reports:** The deadline for responding expert reports shall be December 22, 2017.
- **Close of expert discovery:** The deadline for expert discovery is January 15, 2017
- **Dispositive motions:** All dispositive motions shall be filed by February 13, 2018; opposition shall be filed within 30 days of service of the motion; reply shall be filed within 15 days of service of the opposition.

Status of Mediation

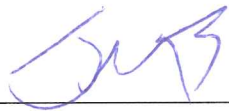
All parties have contacted CADRS. The parties have not agreed to engage in mediation at this time.

Dated: September 7, 2017

LAW OFFICE OF DONALD F. BURKE

Donald F. Burke
*Attorney for Port Elizabeth Terminal &
 Warehouse Corp.*

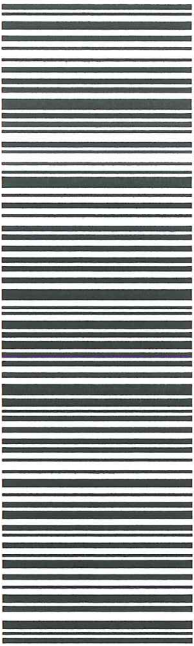
PORT AUTHORITY LAW DEPARTMENT

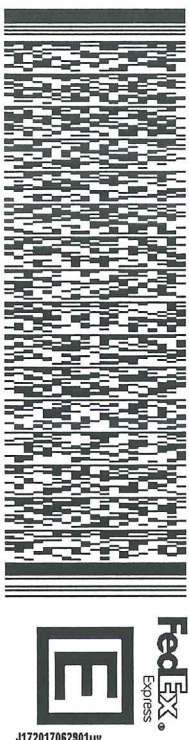


Juan M. Barragan
*Attorney for The Port Authority of New York
 and New Jersey*

ORIGIN ID: PCTA (212) 435-3529 JUAN BARRAGAN THE PORT AUTHORITY OF NY & NJ 4 WORLD TRADE CTR FL 24 NEW YORK, NY 10007 UNITED STATES US		SHIP DATE: 07SEP17 ACTWGT: 1.00 LB CAD: 9080175INETS3920 BILL SENDER
TO DONALD F. BURKE, ESQ. ATTORNEY AT LAW 45 GALE ROAD BRICK NJ 08723		
(732) 966-4922 INV: PO:	REF: PETW DEPT:	549J1/FF19/104C

TRK# 7702 1026 2819 0201	FRI - 08 SEP 3:00P STANDARD OVERNIGHT 08723 NJ-US EWR
-----------------------------	--

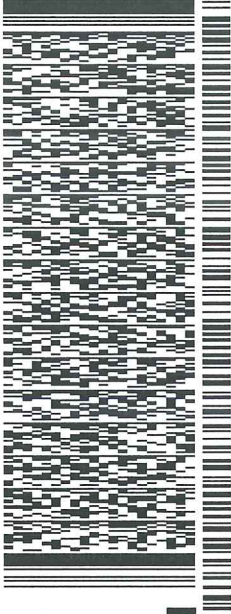
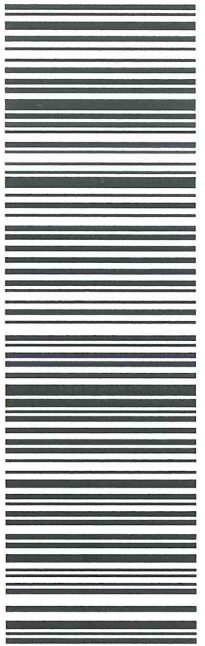



After printing this label:

1. Use the 'Print' button on this page to print your label to your laser or inkjet printer.
2. Fold the printed page along the horizontal line.
3. Place label in shipping pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.

Warning: Use only the printed original label for shipping. Using a photocopy of this label for shipping purposes is fraudulent and could result in additional billing charges, along with the cancellation of your FedEx account number.

Use of this system constitutes your agreement to the service conditions in the current FedEx Service Guide, available on fedex.com. FedEx will not be responsible for any claim in excess of \$100 per package, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the current FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of \$100 or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is \$1,000, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see current FedEx Service Guide.

ORIGIN ID: PCTA (212) 435-3529 JUN BARAGAN THE PORT AUTHORITY OF NY & NJ 4 WORLD TRADE CTR FL 24 NEW YORK, NY 10007 UNITED STATES US		SHIP DATE: 07SEP17 ACTWGT: 1.00 LB CAD: 9080173/NET3920
TO SECRETARY FEDERAL MARITIME COMMISSION 800 N. CAPITAL STREET, NW WASHINGTON DC 20573 (999) 999-9999 REF: PETW INV: DEPT:		BILL SENDER
		
		
J172017062901uv		
TRK# 7702 1028 3118 0201		FRI - 08 SEP 3:00P STANDARD OVERNIGHT
EP TSGA DC-US		20573 IAD
		

549J1/FF19/104C

After printing this label:

1. Use the 'Print' button on this page to print your label to your laser or inkjet printer.
2. Fold the printed page along the horizontal line.
3. Place label in shipping pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.

Warning: Use only the printed original label for shipping. Using a photocopy of this label for shipping purposes is fraudulent and could result in additional billing charges, along with the cancellation of your FedEx account number.

Use of this system constitutes your agreement to the service conditions in the current FedEx Service Guide, available on fedex.com. FedEx will not be responsible for any claim in excess of \$100 per package, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the current FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of \$100 or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is \$1,000, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see current FedEx Service Guide.